Historical source

Encyclopaedia Britannica scan, source row 513. Parse 3.5 extracted the text. Super 3.5 VL corrected it from an enlarged crop of each block. It can still contain recognition errors. Page headers, footers, and page numbers are removed.

Untitled continuation (E0028)

Continues an entry from an earlier page.

England.

conquest. William earl of Poitiers and duke of Guienne had resolved upon an expedition to the holy land; and, for this purpose, had put himself at the head of a vast multitude, confiding, according to some historians, of 60,000 horse, and a much greater number of foot. Like Robert of Normandy, he offered to mortgage his dominions for money sufficient to conduct this multitude into Asia. The king accepted his offer; and had prepared a fleet and army to take possession of these dominions, when an unfortunate accident put an end to his projects and his life. He was engaged in hunting, the sole amusement, and indeed the principal occupation, of princes in those rude times. Walter Tyrrel, a French gentleman remarkable for his skill in archery, attended him in this recreation, of which the new forest was the scene. William had dismounted after a chase; and Tyrrel, impatient to show his dexterity, let fly an arrow at a flag which suddenly started before him. The arrow glanced from a tree, and struck the king to the heart. He instantly fell down dead; and Tyrrel, terrified at the accident, clapt spurs to his horse, hastened to the sea-shore, and embarked for France, where he joined the crusade that was setting out from that country. This happened on the 2d of August 1100, after the king had reigned 13 years, and lived about 40. His body was found in the woods by the country-people, and buried without ceremony at Winchester.

After the death of William, the crown of right devolved to Robert his eldest brother; for William had no legitimate children. But what Robert had formerly lost by his indolence, he was again deprived of by his absence at the holy war. Prince Henry was in the forest with William Rufus at the time the latter was killed. He no sooner heard the important news, than he hurried to Winchester, and secured the royal treasure. William de Breteuil, keeper of the treasure, arrived almost the same instant, and opposed his pretensions; telling him, that the treasure belonged to his elder brother, who was now his sovereign, and for whom he was determined to keep it. But Henry, drawing his sword, threatened him with instant death if he dared to disobey him; and others of the late king's retinue, who came every moment to Winchester, joining the prince's party, he was obliged to desist. Henry lost no time in fully accomplishing his purpose. In less than three days he got himself crowned king of England, by Maurice bishop of London. Precise profession supplied every deficiency of title; and no one dared to appear in defence of the absent prince.

His charter in savour of the people. The beginning of king Henry's reign promised to be favourable to the English liberty; owing chiefly to his fear of his brother. To conciliate the affec-

The beginning of King Henry's reign promised to be favourable to the English liberty; owing chiefly to his fear of his brother. To conciliate the affections of his subjects, he passed a charter calculated to remove many of the grievous oppressions which had been complained of during the reigns of his father and brother. He promised, that, at the death of any abbot or bishop, he never would seize the revenues of the fee or abbey during the vacancy, but would leave the whole to be reaped by the successor; and that he would never let to farm any ecclesiastical benefice, or dispose of it for money. To the laity he promised, that, upon the death of any earl, baron, or military tenant, his heir should be admitted to the possession of his estate, on paying a just and lawful relief; without being ex-

pofed to those enormous exactions which had been formerly required. He remitted the wardship of minors; and allowed guardians to be appointed, who should be answerable for the truth. He promised not to dispose of any heiress in marriage but by advice of all the barons; and if any baron intended to give his daughter, sister, niece, or kinswoman, in marriage, it should only be necessary for him to consult the king, who promised to take no money for his consent, nor ever to refuse permission, unless the person to whom it was proposed to marry her should happen to be his enemy. He granted his barons and military tenants the power of bequeathing by will their money or personal estates; and if they neglected to make a will, he promised that their heirs should succeed to them. He renounced the right of imposing moneyage, and of levying taxes at pleasure, on the farms which the barons kept in their own hands. He made some general professions of moderating fines; he offered a pardon for all offences; and remitted all debts due to the crown. He also required, that the vassals of the barons should enjoy the same privileges which he granted to his own barons; and he promised a general confirmation and observance of the laws of king Edward. To give greater authenticity to these concessions, a copy of the Syllem, charter was lodged in some abbey of each county.

King Henry, farther to increase his popularity, degraded and committed to prison Ralph Flambard bishop of Durham, who had been the chief instrument of oppression under his brother. He sent for Anselm who was then at Lyons, inviting him to return and take possession of his dignities. Anselm returned; but quarrels when Henry proposed to him to do the same homage to him which he had done to his brother, the king met with an absolute refusal. During his exile, Anselm had assisted at the council of Bari; where, besides fixing the controversy between the Greek and Latin churches concerning the procession of the Holy Ghost, the right of election to church-preferments was declared to belong to the clergy alone, and spiritual censures were denounced against all ecclesiastics who did homage to laymen for their fees or benefices, and on all laymen who exacted it. The rite of homage by the feudal customs was, that the vassal should throw himself on his knees, put his joined hands between those of his superior, and should in that posture swear fealty to him. But the council declared it execrable, that pure hands, which could create God, and offer him up for the salvation of mankind, should be put, after this humiliating manner, between profane hands, which, besides being inured to rapine and bloodshed, were employed day and night in impure purposes and obscene contacts. To this decree therefore Anselm appealed; and declared, that so far from doing homage for his spiritual dignity, he would not even communicate with any ecclesiastic who paid that submission, or who accepted of investitures from laymen. Henry durst not inflict; and therefore desired that the controversy might be suspended, and that messengers might be sent to Rome to accommodate matters with the Pope, and to obtain his confirmation of the laws and customs of England.

England. Henry now took another step which seemed capable of confirming his claims to the crown without any dan- ger of a rival. The English remembered with regret their

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